

DSHEA (Dietary Supplements)

DSHEA Definition of Dietary Supplement

Title: Definition of Dietary Supplement

Jurisdiction: International

Category: International

Source Citation: Dietary Supplement Health and Education Act of 1994 (DSHEA), §3; amending Federal Food, Drug, and Cosmetic Act (FD&C Act), §201(ff); 21 U.S.C. §321(ff)

Plain English Summary:

An Ayurvedic oral product may qualify as a dietary supplement in the United States if it is intended to supplement the diet and contains qualifying dietary ingredients such as herbs/botanicals, vitamins, minerals, amino acids, or extracts and concentrates of these ingredients. The product must be intended for ingestion, not represented as a conventional food or sole meal item, and must be labeled as a dietary supplement.

The Exact Legal Text:

21 U.S.C. §321(ff)(1) Dietary supplement

The term dietary supplement

(1) means a product (other than tobacco) intended to supplement the diet that bears or contains one or more of the following dietary ingredients:

(A) a vitamin;

(B) a mineral;

(C) an herb or other botanical;

(D) an amino acid;

(E) a dietary substance for use by man to supplement the diet by increasing the total dietary intake; or

(F) a concentrate, metabolite, constituent, extract, or combination of any ingredient described in clause (A), (B), (C), (D), or (E).

21 U.S.C. §321(ff)(2) Form and labeling requirements

(2) means a product that

(A)(i) is intended for ingestion in a form described in section 350(c)(1)(B)(i) of this title; or

(ii) complies with section 350(c)(1)(B)(ii) of this title;

(B) is not represented for use as a conventional food or as a sole item of a meal or the diet; and

(C) is labeled as a dietary supplement...

21 U.S.C. §321(ff)(3) Exclusions

The definition also establishes exclusions for certain articles that are approved or authorized as drugs, antibiotics, biologics, or investigational products, subject to the statutory exceptions.

Keywords/Triggers:

dietary supplement definition, Ayurvedic supplement USA, herbal supplement, botanical ingredient, dietary ingredient, DSHEA 1994, 21 USC 321(ff), supplement classification

DSHEA New Dietary Ingredients

Title: New Dietary Ingredients and Premarket Notification

Jurisdiction: International

Category: International

Source Citation: Federal Food, Drug, and Cosmetic Act (FD&C Act), §413(a); 21 U.S.C. §350b(a)

Plain English Summary:

An Ayurvedic ingredient can be a New Dietary Ingredient (NDI) if it was not marketed in the United States in a dietary supplement before October 15, 1994. A dietary supplement containing an NDI is generally considered adulterated unless the statutory safety conditions are satisfied, including the required FDA notification at least 75 days before introducing the product into interstate commerce.

The Exact Legal Text:

21 U.S.C. §350b(a) New dietary ingredients

A dietary supplement which contains a new dietary ingredient shall be deemed adulterated under section 342(f) of this title unless it meets one of the following requirements:

(1) The dietary supplement contains only dietary ingredients which have been present in the food supply as an article used for food in a form in which the food has not been chemically altered.

(2) There is a history of use or other evidence of safety establishing that the dietary ingredient when used under the conditions recommended or suggested in the labeling of the dietary supplement will reasonably be expected to be safe and, at least 75 days before being introduced or delivered for introduction into interstate commerce, the manufacturer or distributor of the dietary ingredient or dietary supplement provides the Secretary with information, including any citation to published articles, which is the basis on which the manufacturer or distributor has concluded that a dietary supplement containing such dietary ingredient will reasonably be expected to be safe.

21 U.S.C. §350b(d) Definition of new dietary ingredient

The term new dietary ingredient means a dietary ingredient that was not marketed in the United States in a dietary supplement before October 15, 1994.

Keywords/Triggers:

new dietary ingredient, NDI, Ayurvedic herb USA, premarket notification, 75 day notification, October 15 1994, NDI safety, 21 USC 350b

DSHEA Adulterated Dietary Supplements

Title: Adulterated Dietary Supplements

Jurisdiction: International

Category: Standards

Source Citation: Federal Food, Drug, and Cosmetic Act (FD&C Act), §402(f); 21 U.S.C. §342(f)

Plain English Summary:

A dietary supplement can be legally considered adulterated when it contains a new dietary ingredient that does not satisfy the statutory safety requirements. For an Ayurvedic startup introducing an ingredient that qualifies as an NDI, failure to establish the required safety basis or provide the required notification can make the supplement adulterated as a matter of law.

The Exact Legal Text:**21 U.S.C. §342(f)(1) Dietary supplement adulteration**

If it is or contains a new dietary ingredient for which there is inadequate information to provide reasonable assurance that such ingredient does not present a significant or unreasonable risk of illness or injury...

The provision also establishes additional circumstances in which a dietary supplement containing a new dietary ingredient may be deemed adulterated.

Keywords/Triggers:

adulterated supplement, Ayurvedic supplement safety, NDI adulteration, significant risk, unreasonable risk, dietary supplement compliance, 21 USC 342(f)

DSHEA Structure/Function Claims

Title: Structure/Function Claims for Dietary Supplements

Jurisdiction: International

Category: Advertising

Source Citation: Federal Food, Drug, and Cosmetic Act (FD&C Act), §403(r)(6); 21 U.S.C. §343(r)(6)

Plain English Summary:

A dietary supplement may make certain structure/function claims describing how a nutrient or dietary ingredient affects the structure or function of the body, provided the statutory requirements are met. These claims are different from disease-treatment claims; a claim that the product diagnoses, treats, cures, or prevents a disease can move the product into drug territory instead.

The Exact Legal Text:

21 U.S.C. §343(r)(6) provides, in relevant part:

“For purposes of this paragraph, a statement for a dietary supplement is a statement described in clause (A), (B), or (C) if—

(A) the statement claims a benefit related to a classical nutrient deficiency disease and discloses the prevalence of such disease in the United States,

(B) the statement describes the role of a nutrient or dietary ingredient intended to affect the structure or function in humans, characterizes the documented mechanism by which a nutrient or dietary ingredient acts to maintain such structure or function, or describes general well-being from consumption of a nutrient or dietary ingredient, or

(C) the statement describes the benefit related to a nutrient or dietary ingredient intended to affect the structure or function of the body...”

Keywords/Triggers:

structure function claim, Ayurvedic health claim, supplement advertising, botanical claims, dietary ingredient claim, disease claim, 21 USC 343(r)(6)

DSHEA Required Disclaimer for Certain Claims

Title: Disclaimer for Structure/Function Claims

Jurisdiction: International

Category: Advertising

Source Citation: Federal Food, Drug, and Cosmetic Act (FD&C Act), §403(r)(6)(C); 21 U.S.C. §343(r)(6)(C); 21 CFR §101.93

Plain English Summary:

When a dietary supplement uses a qualifying structure/function claim or certain other permitted claims, the labeling must include the required FDA disclaimer. The disclaimer makes clear that FDA has not evaluated the claim and that the product is not intended to diagnose, treat, cure, or prevent a disease.

The Exact Legal Text:

21 U.S.C. §343(r)(6)(C):

“Except for claims subject to subclause (A), the statement is accompanied by the following disclaimer prominently displayed and in boldface type: ‘This statement has not been evaluated by the Food and Drug Administration. This product is not intended to diagnose, treat, cure, or prevent any disease.’”

Keywords/Triggers:

FDA disclaimer, structure function disclaimer, supplement disclaimer, Ayurvedic product claims, disease disclaimer, FDA evaluated claim, 21 USC 343(r)(6)(C)